

Pennsylvania Expungement & Sealing Agent Training Reference

A complete operational knowledge base for record-clearing in Pennsylvania: the three mechanisms (expungement, petition-based limited access, and automatic Clean Slate sealing), eligibility, waiting periods, ineligible offenses, procedure, and record requests.

Prepared for	LegalEase / Expungement.ai — Wilma assistant
Coverage	Commonwealth of Pennsylvania (Court of Common Pleas in each of 67 counties)
Primary statutes	18 Pa.C.S. §§ 9122 (expungement), 9122.1 (petition limited access), 9122.2 (Clean Slate), 9122.3–9122.4
Controlling law	Clean Slate Act — Act 56 of 2018, Act 83 of 2020, Act 36 of 2023 ("Clean Slate 3.0")
Document type	Internal training / retrieval reference — not legal advice
Currency	Reflects law as of mid-2026, incl. Clean Slate 3.0 (eff. Feb 12, 2024)

VERIFY BEFORE RELYING

Pennsylvania's record-clearing law turns on a sharp distinction most users miss:

EXPUNGEMENT (destruction) is very narrow and generally **NOT** available for misdemeanor or felony convictions, while **SEALING** (an order for limited access) is the workhorse for convictions. Clean Slate 3.0 (Act 36 of 2023, eff. Feb 12, 2024) expanded sealing to some felonies for the first time and shortened waiting periods, but its automatic implementation has been phased and at times delayed. The agent must not tell a user a conviction can be "expunged" when only sealing is available, and must verify current Clean Slate implementation status before promising automatic relief.

How the agent should use this document

Pennsylvania has THREE mechanisms, and the agent must route to the right one. (1) **Expungement** under § 9122 destroys the record but is limited to non-convictions, summary offenses, ARD completions, pardoned offenses, age 70+, and the deceased. (2) **Petition-based limited access (sealing)** under § 9122.1 is filed with the court for qualifying misdemeanors and, since Clean Slate 3.0, some property felonies. (3) **Automatic Clean Slate sealing** under § 9122.2 happens with no filing for eligible records once the waiting period passes. The agent should always (1) determine conviction vs. non-conviction, (2) for non-convictions/summaries route to expungement, (3) for convictions decide automatic vs. petition sealing, and (4) screen the ineligible-offense list and confirm restitution is paid.

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Statutory shorthand used throughout

18 Pa.C.S. § 9122	EXPUNGEMENT (record destruction) — non-convictions, summaries, ARD, age 70, deceased, p
§ 9122(a)	Mandatory expungement (e.g., no disposition after 18 months; acquittal of all charges)
§ 9122(b)	Discretionary / age-70 / deceased-3-years expungement
§ 9122.1	Petition for an ORDER FOR LIMITED ACCESS (sealing by petition) — "Act 5"
§ 9122.2	CLEAN SLATE — automatic limited access; AOPC sends monthly lists to PSP
§ 9122.3 / 9122.4	Effect of limited access; vacatur of an erroneous or later-disqualified sealing order
Act 56 / 83 / 36	Clean Slate 1.0 (2018) / 2.0 (2020) / 3.0 (2023, eff. 2/12/2024)
PATCH	PA State Police criminal history report system (~\$22), used to confirm record

1. Eligibility rules

Three mechanisms, in the order the agent should consider them.

Mechanism A — Expungement (§ 9122): record destruction, narrow

Expungement actually destroys the record but is limited to specific categories:

- **Non-conviction records** — charges dismissed, withdrawn, nolle prossed, or an acquittal (not guilty at trial).
- **Arrests with no disposition** after 18 months and no pending proceedings (§ 9122(a)).
- **Summary offense convictions** after the person has been free of arrest or prosecution for 5 years.
- **ARD (Accelerated Rehabilitative Disposition)** successfully completed — the charges are expungeable on completion of the program.
- **Pardoned offenses** — under Clean Slate 3.0, a record is automatically expunged after a full gubernatorial pardon.
- **Age 70+** and free of arrest/prosecution for 10 years following final release from confinement or supervision (§ 9122(b)).
- **Deceased** for 3 years (petition on behalf of the estate).

Key limit: misdemeanor and felony CONVICTIONS cannot be expunged unless the person is 70+ (with the arrest-free condition) or has received a gubernatorial pardon. For those convictions, sealing — not expungement — is the available remedy.

Mechanism B — Petition for limited access / sealing (§ 9122.1, "Act 5")

Filed with the Court of Common Pleas to seal qualifying convictions that are not (or not yet) automatically sealed. Eligible: first-degree misdemeanors punishable by 2 years or less, second- and third-degree misdemeanors, and ungraded offenses punishable by up to 5 years; and, since Clean Slate 3.0, certain third-degree property felonies (e.g., theft, forgery) where restitution is paid. Requires no conviction (punishable by 1+ year) for the applicable conviction-free period and that all restitution is paid.

Mechanism C — Automatic Clean Slate sealing (§ 9122.2)

No filing required. The Administrative Office of Pennsylvania Courts (AOPC) sends monthly lists of qualifying records to the Pennsylvania State Police, which seals them from public view. Covers non-convictions, summary convictions (after 5 years), eligible misdemeanors (after 7 years conviction-free), and, under Clean Slate 3.0, certain low-level drug felonies (after 10 years). Sealed records remain visible to law enforcement, courts, and certain agencies.

AGENT GUIDANCE

Route by outcome first. Non-conviction, summary, ARD, pardon, age-70, or deceased → expungement (§ 9122). A misdemeanor or eligible felony conviction → sealing, either automatic (Clean Slate) or by petition (§ 9122.1) to clear it sooner or to reach offenses Clean Slate doesn't auto-seal.

Never tell a user a conviction will be "expunged" unless they are 70+ or pardoned. For convictions the correct word is sealed / limited access — the record is hidden, not destroyed.

2. Waiting periods

Clean Slate 2.0 removed unpaid fines and costs as a barrier to sealing, but **restitution to victims must still be paid**. Clean Slate 3.0 shortened several periods. Periods run conviction-free from the relevant disposition or release.

Mechanism / matter	Remedy	Waiting period	Notes
Non-conviction (dismissed, withdrawn, acquittal)	Expunge	None	§ 9122; acquittal auto-expunged
Arrest, no disposition	Expunge	18 months	No pending proceedings
Summary conviction	Expunge	5 years	Arrest/prosecution-free
ARD completion	Expunge	On completion	Program successfully completed
Pardoned offense	Expunge	On pardon	Automatic under Clean Slate 3.0
Conviction, age 70+	Expunge	10 years	After final release; arrest-free
Misdemeanor conviction (seal: auto or petition)	Seal	7 years	Reduced from 10 by CS 3.0; conviction-free
Summary (sealing track)	Seal	5 years	Conviction-free
Eligible drug felony (automatic)	Seal	10 years	CS 3.0; not if 30+ month sentence imposed
Property felony – 3rd deg. (petition only)	Seal	10 years	CS 3.0; restitution paid

The single most consequential fact: **restitution must be paid** for sealing, even though other fines and costs no longer block it. A user who still owes victim restitution has not satisfied the requirement, regardless of elapsed time. Felony sealing under Clean Slate 3.0 is also capped by sentence length — a drug felony is ineligible if a sentence of 30 months or more was imposed, which excludes trafficking-level cases.

AGENT GUIDANCE

Always ask whether victim restitution is fully paid before telling a user a conviction is sealable; it is the most common hidden barrier in PA. Unpaid non-restitution fines/costs do NOT block sealing (Clean Slate 2.0).

For drug felonies, confirm the sentence imposed was under 30 months before indicating Clean Slate felony eligibility.

3. Disqualifying / ineligible offenses

Convictions for the following are generally NOT eligible for sealing (whether automatic Clean Slate or by § 9122.1 petition). The petition list ("Act 5") and the Clean Slate list are similar but not identical; the agent must apply the one matching the pathway.

Offenses excluded from sealing

- Any offense punishable by more than 2 years that is graded as a first-degree misdemeanor or higher, except where specifically made eligible (e.g., CS 3.0 property felonies).
- Crimes involving **danger to the person** (e.g., simple/aggravated assault and similar) when graded M1.
- Crimes **against the family** (e.g., endangering welfare of children) when graded M1.
- **Firearms / weapons offenses** under Chapter 61 when graded M1.
- **Sexual offenses** and any offense requiring registration under Megan's Law / SORNA.
- **Cruelty to animals** and certain corruption-of-minors offenses.
- **Impersonating a public servant; intimidation/retaliation against a witness or victim** (Act 5 exclusions).
- **Murder** and any offense punishable by 7+ years; a felony conviction in the prior 20 years bars Act 5 petition sealing.
- Drug felonies where a sentence of 30 months or more was imposed (Clean Slate felony exclusion).

Other categorical limits

- **Unpaid restitution** bars sealing until satisfied (Section 2).
- **Subsequent convictions** reset the conviction-free clock and can trigger vacatur of a Clean Slate order (§ 9122.4).
- **Out-of-state / federal records** are not reachable by PA sealing or expungement.

VERIFY BEFORE RELYING

The grading-driven exclusions (M1 vs. M2/M3) and the offense categories turn on the precise Title 18 section and grade of each conviction, and Clean Slate 3.0 changed which felonies qualify. The agent must map each conviction to its statute and grade and verify against the current § 9122.1 / § 9122.2 eligibility lists before declaring an offense eligible or ineligible — the offense label is not enough.

AGENT GUIDANCE

Grade matters as much as offense: the same offense may be sealable at M2/M3 but excluded at M1. Always capture the grade.

The 20-year-prior-felony bar and the 7+-year-maximum bar are the two that most often disqualify otherwise-hopeful petitioners — check criminal history breadth, not just the target offense.

4. Case outcome rules

Disposition drives both the mechanism and whether a filing is needed. This table is the agent's primary routing logic for PA.

Case outcome	Mechanism	Remedy & route	Standard / condition
Dismissed / withdrawn / nolle prossed	§ 9122	Expunge — petition	Mandatory where applicable
Acquittal (not guilty, all charges)	§ 9122(4)	Expunge — automatic	No conviction
No disposition 18+ months	§ 9122(a)	Expunge — petition	No pending proceedings
Summary conviction	§ 9122 / 9122.2	Expunge (5 yr) or auto-seal	Arrest-free
ARD completed	§ 9122	Expunge — petition	Program completed
Pardoned offense	§ 9122	Expunge — automatic	Full gubernatorial pardon
Misdemeanor conviction (eligible)	§ 9122.2 / 9122.1	Seal — auto (7 yr) or petition	Conviction-free; restitution paid
Eligible drug felony	§ 9122.2	Seal — automatic (10 yr)	< 30-month sentence
Property felony (M3-grade theft/forgery)	§ 9122.1	Seal — petition (10 yr)	Restitution paid; court grants
Excluded offense (Sec. 3)	—	Pardon route only	Board of Pardons

The effect differs by remedy. Expungement under § 9122 destroys the record. Sealing (limited access) hides it from public background checks — employers, landlords, the general public — but the record is NOT destroyed and remains available to criminal justice agencies, the Department of Human Services for child-protective uses, and state licensing agencies. Clean Slate also grants employers immunity from certain negligent-hiring claims tied to a sealed record.

AGENT GUIDANCE

Be precise about the remedy. For convictions, the outcome is sealing, not destruction, and the record stays visible to the listed agencies. Do not describe sealing as making the record disappear. When an offense is excluded from both sealing tracks, the only remaining route is a gubernatorial pardon through the PA Board of Pardons, which then enables expungement — a separate, longer process.

5. Required forms

Pennsylvania uses statewide forms promulgated under the Rules of Criminal Procedure, available at [pacourts.us](https://www.pacourts.us). The filing differs by mechanism.

Expungement (§ 9122)

- **Petition for Expungement** under Pa.R.Crim.P. 490 (summary cases) or Rule 790 (court cases), with the standardized petition and a proposed order.
- Attach a current PA State Police criminal history report (PATCH), typically obtained within 60 days.
- Identify each docket/offense, the disposition, and the statutory basis for expungement.

Petition for limited access / sealing (§ 9122.1)

- **Petition for Order for Limited Access** — the statewide form commonly referenced as **Form 791**, available at [pacourts.us](https://www.pacourts.us), with a proposed Order for Limited Access.
- Attach the current PATCH criminal history report.
- Confirm restitution paid and the conviction-free period satisfied.

Clean Slate automatic sealing (§ 9122.2)

- **No form and no filing** — sealing happens automatically via the AOPC-to-PSP monthly process. The person's role is to verify, via a PATCH report, that eligible records were in fact sealed.

AGENT GUIDANCE

Pick the form by mechanism: Rule 490/790 petition for expungement; Form 791 for petition sealing; nothing to file for Clean Slate automatic. Always attach a fresh PATCH report to a petition.

If a user's eligible record was not auto-sealed (a known data/alias gap), a § 9122.1 petition is the corrective route — don't just tell them to wait.

6. Filing instructions

The petition sequence (expungement or limited access) in the Court of Common Pleas of the county of conviction:

- 1 Obtain a PATCH criminal history report** from the PA State Police so every docket, grade, and disposition is accurate; many courts require it dated within 60 days.
- 2 Confirm the mechanism and eligibility** — expunge vs. seal, the waiting period, the grade-based exclusions, and that restitution is paid.
- 3 Complete the correct form** — Rule 490/790 expungement petition, or Form 791 petition for limited access — plus the proposed order, attaching the PATCH report.
- 4 File in the Court of Common Pleas of the county where the case was heard**, and pay the filing fee (typically \$132–\$215 by county) or seek a fee waiver (in forma pauperis).
- 5 Serve the District Attorney** concurrently with filing. The DA has **30 days** to consent, object, or take no action.
- 6 Resolution.** If the DA consents or does not respond, the court may grant the petition without a hearing. If the DA objects, the court schedules a hearing where both sides are heard.
- 7 Order and execution.** If granted, the court enters the order; records are expunged (destroyed) or sealed (limited access) and the PA State Police update the central repository.

AGENT GUIDANCE

Venue is the county of the case, filed in the Court of Common Pleas — not the county of residence. Pin down the county and docket before drafting; a person with cases in multiple counties files separately in each.

Highlight the 30-day DA window: an unopposed, well-documented petition is often granted on the papers, so a clean PATCH attachment and proof of paid restitution matter.

7. Court-specific quirks

- **County-by-county filing.** Petitions are filed in the Court of Common Pleas of the county of conviction; fees and local procedures vary across the 67 counties.
- **Clean Slate is automatic but imperfect.** AOPC sends monthly lists to the State Police, but alias mismatches and data gaps mean some eligible records are missed — a PATCH check is the only way to confirm, and a petition is the fix.
- **Restitution vs. other costs.** Clean Slate 2.0 means unpaid fines/costs no longer block sealing, but unpaid victim restitution still does — a frequent point of confusion.
- **Summary offenses on a separate clock.** Summary convictions expunge after 5 arrest-free years and auto-seal on a 5-year track — different from misdemeanor timing.
- **Pardon-then-expunge for convictions.** Serious convictions excluded from sealing can only be cleared via a gubernatorial pardon through the Board of Pardons; under CS 3.0 a full pardon now triggers automatic expungement.
- **Vacatur risk.** Under § 9122.4 a sealing order can be vacated if issued in error or if the person is later convicted of a new misdemeanor or felony.
- **ARD is county-administered.** ARD expungement practice and timing can vary by county DA office.

AGENT GUIDANCE

Always have the user pull a PATCH report to confirm what Clean Slate did or did not seal; never assume automatic sealing happened.

For excluded serious convictions, set expectations honestly: the realistic path is a pardon, which is a separate, multi-year Board of Pardons process, not a court petition.

8. Fee information

Item	Amount	Note
Expungement / limited-access petition filing	~\$132–\$215 per petition	Varies by county; per docket
Clean Slate automatic sealing	\$0	No petition, no fee
PATCH criminal history report	~\$22	PA State Police; per request
Fee waiver (in forma pauperis)	\$0	For petitioners unable to pay
Attorney fees (if represented)	Varies	Not required; legal aid available
Board of Pardons application	Application cost varies	Only for the pardon route

The headline cost facts: automatic Clean Slate sealing is free, and a PATCH report runs about \$22. Petition filing fees are county-set and generally fall between \$132 and \$215 per petition; a person with multiple dockets across counties should expect a fee for each. Petitioners who cannot afford the fee can seek a waiver (in forma pauperis).

AGENT GUIDANCE

Lead with the free options: if a record is Clean-Slate eligible, the user may pay nothing and should verify via PATCH before filing. Quote petition fees as a county-dependent range and point to the fee waiver for cost-constrained users.

The only near-certain cost for most users is the ~\$22 PATCH report needed to confirm the record.

9. Criminal history (PATCH) request process

An accurate criminal history is the foundation of any PA filing and the only reliable way to confirm what Clean Slate has already sealed.

A. Statewide history — PA State Police via PATCH

- PATCH (Pennsylvania Access To Criminal History) is the PA State Police online system for obtaining a criminal history report.
- A report costs approximately \$22 per request; courts often require it dated within 60 days of filing.
- Use PATCH to confirm each offense's grade and disposition, and to verify whether eligible records were actually sealed by Clean Slate.

B. Court records — county Clerk of Courts / UJS portal

- The county Clerk of Courts holds the docket and disposition for each case; the Unified Judicial System (UJS) web portal shows public docket sheets.
- These confirm the county of venue, the docket number, the grade, and the disposition needed for the petition.

C. Federal — FBI Identity History Summary

- For records that may extend beyond Pennsylvania, the FBI fingerprint-based Identity History Summary is the federal equivalent; PA relief reaches PA records only.

VERIFY BEFORE RELYING

PATCH procedures and the report fee can change. The agent should verify the current PA State Police PATCH process and fee at the time of advising rather than quoting a fixed figure from memory.

AGENT GUIDANCE

Frame the PATCH report as step one for every PA matter — it both grounds the petition and reveals what Clean Slate already did. Direct users to PATCH for the statewide history and to the county Clerk of Courts / UJS portal for docket detail.

10. Sample petitions and completed examples

PA filings are statewide-form petitions filed in the Court of Common Pleas. The examples below show the structure and key recitals for the two petition mechanisms plus the two automatic pathways. Names, dates, and identifiers are fictional and illustrative.

Example A — Petition for Expungement (§ 9122), non-conviction

COURT OF COMMON PLEAS OF ALLEGHENY COUNTY, PENNSYLVANIA
CRIMINAL DIVISION
COMMONWEALTH v. ANDRE L. CARTER Docket No. CP-02-CR-0001234-2022

PETITION FOR EXPUNGEMENT (Pa.R.Crim.P. 790 / 18 Pa.C.S. 9122)
1. Petitioner was charged with retail theft (M2) on 02/02/2022.
2. The charge was nolle prossed / withdrawn on 06/15/2022; the case did NOT result in a conviction.
3. Under 18 Pa.C.S. 9122, a non-conviction record shall be expunged. A current PATCH report is attached (Exhibit A).
4. No proceedings are pending and no other bar applies.
WHEREFORE Petitioner requests an Order directing the PA State Police and the Clerk of Courts to EXPUNGE all records of this case. Proposed Order attached. Served on the District Attorney.

Example B — Petition for Order for Limited Access (§ 9122.1, Form 791), misdemeanor conviction

COURT OF COMMON PLEAS OF ALLEGHENY COUNTY – CRIMINAL DIVISION
COMMONWEALTH v. ANDRE L. CARTER Docket No. CP-02-CR-0005678-2016

PETITION FOR ORDER FOR LIMITED ACCESS (18 Pa.C.S. 9122.1)
1. Petitioner was convicted of theft (M2) on 03/14/2017.
2. More than 7 years have passed conviction-free since the sentence (Clean Slate 3.0 reduced the period from 10 to 7).
3. All victim restitution has been paid in full (Exhibit B).
4. The offense is eligible: it is not an excluded crime of danger to person, family, firearms (M1), sexual offense, or offense punishable by more than 2 years as an M1.
5. Petitioner has no felony conviction in the prior 20 years.
6. A current PATCH report is attached (Exhibit A).
WHEREFORE Petitioner requests an ORDER FOR LIMITED ACCESS sealing this conviction from public access. Proposed Order attached. Served on the District Attorney (30 days to respond).

Examples C & D — Automatic pathways (no filing)

C. CLEAN SLATE AUTOMATIC SEALING (9122.2):

A 2014 M2 conviction, conviction-free for 7+ years with restitution paid, is sealed automatically. AOPC sends the record to the PA State Police on a monthly list. The user should confirm via a PATCH report; if missed (alias/data gap), file a 9122.1 petition to correct it.

D. AUTOMATIC EXPUNGEMENT – pardoned offense (CS 3.0 / 9122):

A felony conviction that received a full gubernatorial pardon is automatically EXPUNGED under Clean Slate 3.0 – no separate petition for each docket as was previously required.

Proposed Order (petition pathways)

Each petition is accompanied by a proposed Order reciting the caption and directing the Pennsylvania State Police, the county Clerk of Courts, and any other record-holding agency to expunge (destroy) the records under § 9122, or to grant limited access (seal) under § 9122.1, as applicable.

This reference is an internal training and retrieval aid for the Wilma assistant. It summarizes Pennsylvania statutes and common practice and is not legal advice. PA law changed under Clean Slate 3.0 and automatic implementation has been phased; the agent must verify the current text of 18 Pa.C.S. §§ 9122–9122.4, the eligibility and grading-based exclusion lists, PATCH procedures, county filing specifics, and Clean Slate implementation status before relying on any rule here.